IN THE NEVADA SUPREME COURT

MICHAEL LEE,
Appellant,

v.

STATE OF NEVADA,
Respondent.

No. 85004

On Appeal from Judgment of Conviction in Eighth Judicial Dist. Court Case No. C277650

BRIEF OF NEVADA ATTORNEYS FOR CRIMINAL JUSTICE, AND AMERICAN CIVIL LIBERTIES UNION OF NEVADA, IN SUPPORT OF APPELLANT

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NRAP 26.1 DISCLOSURE

The undersigned counsel of record certifies that the following are persons and entities as described in NEV. RULE. APP. P. 26.1(a) and must be disclosed. These representations are made in order that the judges of this court may evaluate possible disqualification or recusal.

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ABOUT THE BRIEF AND AMICI CURIAE

This brief is filed with written consent of all parties. See Ex. A; NRAP Rule 29(a) ("Any other amicus curiae may file a brief only by leave of court granted on motion or at the court's request or if accompanied by written consent of all parties.").

Nevada Attorneys for Criminal Justice ("NACJ") is a Nevada domestic nonprofit organization comprised of approximately 250 criminal defense attorneys who practice in both the public and private sectors. NACJ members represent defendants in criminal cases at all stages, both pre- and post-conviction.

The American Civil Liberties Union (ACLU) of Nevada is a state affiliate of the national ACLU, a nonprofit, nonpartisan organization that has been our nation's guardian of liberty for over 100 years. The ACLU works to defend and preserve the individual rights and liberties that the Constitution and the laws of the United States guarantee everyone in this country.

INTRODUCTION

Michael Lee's case presents an opportunity to clarify what the appropriate remedy is when the State has made a mid-trial disclosure of exculpatory information to the defense.

Depending on the circumstances, the remedy may shift. But one thing is clear—a conviction is not shielded from reversal just because the State eventually disclosed relevant information to the defense. Instead, a reviewing court should engage in the following two-part analysis. First, the Court should ask whether the State (meaning representatives of the police or the prosecution) failed to comply in bad faith with Nevada's discovery laws. If so, the conviction should be reversed. Second, the Court should ask whether the late disclosure violated the defendant's right to Due Process under the circumstances. If so, the conviction should be reversed. Given this appellate framework, the district court has a duty to grant a continuance after the State's late disclosure when appropriate to mitigate prejudice.

The mid-trial disclosures in this case are especially concerning because they relate to the most critical information a defense team needs to adequately prepare in a child death case. Accordingly, this case provides a useful vehicle for the Court to both delineate the framework that governs late disclosures, and to make clear that the prosecution cannot immunize actions that harm the defense by a last-minute disclosure of critically important data.

ARGUMENT

Appellant Michael Lee has asserted that (1) the prosecution failed to comply with its discovery obligations, (2) the district court failed to grant continuances that

these violations necessitated, and (3) his conviction should be reversed due to the State's gross misconduct.

Following opinions from this Court and the federal courts, a conviction should be reversed when the prosecution has failed to comply with its obligations in either of two different ways. First, it should be reversed when the State has failed to comply in good faith with its statutory discovery obligations. Second, it should be reversed when the State has failed to timely comply with its constitutional discovery obligations. Applying these principles, this Court should assess the State's good or bad faith in failing to disclose readily available, exculpatory information to the defense, and consider the (in)sufficiency of the eventual belated disclosure under *Brady v. Maryland*. Similarly, a district court should consider whether granting a continuance can mitigate the prejudice that would otherwise result.

In a child death case, information about when a child could have suffered the injuries causing death, who cared for the child during that time, and what happened during that time is critically important data that must be disclosed for any effective defense to be mounted.

I. A conviction should be reversed when the State has failed to comply in good faith with its statutory discovery obligations

Nevada law imposes numerous discovery obligations on the prosecution that continue through the trial. See NRS 174.234(3); NRS 174.295(1). For one, the prosecution must disclose information regarding its expert witnesses, including a brief statement about the subject matter on which the experts are going to testify and the substance of the testimony. NRS 174.234(2)(a). In addition, the prosecution must disclose witnesses' recorded statements that with due diligence may become known to the prosecutor. NRS 174.235(1)(a).

But prosecutors, like all litigants, may occasionally violate their disclosure obligations. In such circumstances, "[a] trial court is vested with broad discretion in fashioning a remedy when, during the course of the proceedings, a party is made aware that another party has failed to comply fully with a discovery order." *Langford v. State*, 95 Nev. 631, 635, 600 P.2d 231, 234 (1979) (citing NRS 174.295).

But there is only one remedy for a discovery violation when the State (the prosecution or the police) has acted in bad faith: a mistrial. This Court has explained it must reverse if "the State has acted in bad faith, or [if] the non-disclosure results in substantial prejudice to appellant, and . . . such prejudice has not been alleviated by the trial court's order." *Id.* at 635, 600 P.2d at 234-35. In

accord with *Langford*, this Court has for decades considered the State's good or bad faith when it comes to discovery violations. *See, e.g.*, *Jones v. State*, 113 Nev. 454, 471-72, 937 P.2d 55, 66 (1997); *Maginnis v. State*, 93 Nev. 173, 176, 561 P.2d 922, 923 (1977) (noting "the State's non-compliance was neither willful nor deliberate"); *Coddington v. State*, No. 71835, 2018 WL 1129659, at *6 (Nev. Feb. 26, 2018) (Order of Affirmance). At a minimum, actions taken "in an attempt to prejudice the defendant's case" are done in bad faith. *State v. Ware*, 881 P.2d 679, 685 (N.M. 1994); *see Daniels v. State*, 114 Nev. 261, 267, 956 P.2d 111, 115 (1998) (relying on *Ware*'s discussion of bad faith).

That a harsher medicine must follow from a bad-faith violation of the discovery rules than a good-faith one reflects society's interest in deterring official misconduct. *Cf. State v. Gonzalez*, 139 Nev. Adv. Op. 33, 535 P.3d 248, 252 (2023) (recognizing that harsh sanctions may be justified by their deterrent objective). That interest is profound, affecting even a range of constitutional doctrines. *See, e.g.*, *Arizona v. Youngblood*, 488 U.S. 51, 58 (1988) (holding that "unless a criminal defendant can show bad faith on the part of the police, failure to preserve potentially useful evidence does not constitute a denial of due process of law"); *Barker v. Wingo*, 407 U.S. 514, 531 (1972) ("A deliberate attempt to delay the trial in order to hamper the defense should be weighted heavily against the government.").

Therefore, when assessing the remedy for a violation of the discovery statutes, it is essential to analyze the State's good or bad faith (and by extension, to provide a forum where this can occur). While a prosecutor's good-faith, inadvertent mistake may support a trial court in granting a lesser remedy, the State's bad-faith failure to comply with its obligations should have burdensome consequences.

II. A conviction should be reversed when the prosecution has failed to timely comply with its constitutional discovery obligations

Constitutional law imposes further discovery obligations on the State. Under *Brady*, the State's suppression of evidence favorable to an accused violates Due Process where the evidence is material to guilt or punishment—irrespective of the good or bad faith of the prosecution. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). As applied here, this standard raises the question whether the prosecution "suppresses" evidence if it is eventually disclosed during trial.

This Court has at times intimated that *Brady* does not strictly apply in the late-disclosure context, but that the Due Process right to a fair trial does. *See Thomas v. Eighth Judicial Dist. Court*, 133 Nev. 468, 478 n.12, 402 P.3d 619, 628 n.12 (2017) (relying on *United States v. McPartlin*, 595 F.2d 1321, 1346 (7th Cir. 1979)); *Coddington*, 2018 WL 1129659, at *6 (relying on *United States v. Miller*,

529 F.2d 1125, 1128 (9th Cir. 1976)).[1] At the same time, the Court has acknowledged that reversal is required if late disclosure "results in substantial prejudice to appellant, and . . . such prejudice has not been alleviated by the trial court's order." *Langford*, 95 Nev. at 635, 600 P.2d at 234-35. Therefore, whether a claim is phrased as a *Brady* violation or a Due Process violation, this Court must examine the effect of the State's late disclosure of exculpatory information.

Moreover, a wealth of modern federal case law confirms that the State's late disclosure of exculpatory information implicates a defendant's Fourteenth Amendment rights. For example, then-Circuit Judge Sonia Sotomayor explained, "Brady information . . . must be disclosed 'in a manner that gives the defendant a reasonable opportunity either to use the evidence in the trial or to use the information to obtain evidence for use in the trial.'" *United States v. Rodriguez*, 496 F.3d 221, 226 (2d Cir. 2007) (quoting *United States v. Rittweger*, 524 F.3d 171, 180 (2d Cir. 2008)). Other circuit courts agree. *See, e.g.*, *Lopez v. Massachusetts*, 480 F.3d 591, 595 (1st Cir. 2007) (recognizing that "to treat *Brady* as mechanically limited solely to complete non-disclosure would be foolish and not 'reasonable'"); *United States v. Davenport*, 753 F.2d 1460, 1462 (9th Cir. 1985)

[1] *But see Thomas*, 133 Nev. at 485, 402 P.3d at 633 (Pickering, J., dissenting) (agreeing that a mistrial motion brought after the State belatedly disclosed exculpatory information was properly granted under *Brady v. Maryland*).

("Disclosure, to escape the *Brady* sanction, must be made at a time when the disclosure would be of value to the accused.").

"It is not feasible or desirable to specify the extent or timing of disclosure *Brady* and its progeny require, except in terms of the sufficiency, under the circumstances, of the defense's opportunity to use the evidence when disclosure is made." *Leka v. Portuondo*, 257 F.3d 89, 100 (2d Cir. 2001). "The opportunity for use under *Brady* is the opportunity for a responsible lawyer to use the information with some degree of calculation and forethought." *Id.* at 103.

Thus, "the longer the prosecution withholds information, or (more particularly) the closer to trial the disclosure is made, the less opportunity there is for use." *Id.* at 100; *see also Thomas*, 133 Nev. at 478, 402 P.3d at 629 (concluding that a mistrial motion was properly granted, considering that the motion came on the tenth day of trial, after many exculpatory documents had been belatedly disclosed); *id.* at 485, 402 P.3d at 633 (Pickering, J., dissenting) (agreeing that the mistrial motion was properly granted under *Brady*). "When such a disclosure is first made on the eve of trial, or when trial is under way, the opportunity to use it may be impaired. The defense may be unable to divert resources from other initiatives . . . that are or may seem more pressing. And the defense may be unable to assimilate the information into its case." *Leka*, 257 F.3d at 101; *see also United States v. Knight*, 342 F.3d 697, 709 (7th Cir. 2003) (agreeing with this principle).

Indeed, the defense's blunders after the prosecution has belatedly disclosed evidence should not automatically be attributed to the defense. That is because "the prosecution is in no position to fault the defense for cutting corners when the prosecution itself created the hasty and disorderly conditions under which the defense was forced to conduct its essential business." *Leka*, 257 F.3d at 101. It can be understandably difficult for a defense team "to assimilate new information, however favorable, when a trial already has been prepared on the basis of the best opportunities and choices then available." *Ibid.*

As a result, the Court should consider how the prosecution's late disclosure hampered the efforts the defense team would have otherwise made had there been timely disclosure. *See United States v. Bagley*, 473 U.S. 667, 683 (1985) ("[T]he reviewing court may consider directly any adverse effect that the prosecutor's failure to respond might have had on the preparation or presentation of the defendant's case.").

All told, the prosecution's last-minute disclosure of exculpatory evidence during trial doesn't shield the conviction from reversal. Rather, the prosecution must "make sufficient disclosure in sufficient time to afford the defense an [adequate] opportunity for use." *Leka*, 257 F.3d at 103. When it fails to do so, the conviction should be reversed.

III. When trial courts are deciding whether to grant a continuance, they should consider the constitutional consequences of failing to grant additional time

As explained above, the prosecution's failure to comply with its statutory and constitutional discovery obligations may require a conviction to be reversed. However, at least when the State has not acted in bad faith, the trial court can sometimes mitigate the harm to the defense by granting a continuance.

A continuance may allow the defense "to divert resources" to the issue and "assimilate the information into its case." *Leka*, 257 F.3d at 101. By contrast, "a myopic insistence upon expeditiousness in the face of a justifiable request for delay can render the right to defend with counsel an empty formality." *Ungar v. Sarafite*, 376 U.S. 575, 589 (1964); *see also Morris v. Slappy*, 461 U.S. 1, 11 (1983); *Brass v. State*, 138 Nev. 180, 193, 507 P.3d 208, 219 (2022).

It follows that a district court's discretion to grant or deny a continuance is not boundless. Even a discretionary decision must be guided by the correct, applicable legal framework. A district court has discretion "when, but only when, it calls the game by the right rules." *Las Vegas Review-Journal v. Clark Cty. Office of the Coroner/Med. Exam'r*, 138 Nev. Adv. Op. 80, 521 P.3d 1169, 1175 (2022) (quoting *Fox v. Vice*, 563 U.S. 826, 839 (2011)); *In re D.C.*, 140 Nev. Adv. Op. 25, 546 P.3d 810, 815 (2024) (explaining no deference is owed to legal error). Here, the "right rules" dictate that a district court should consider whether a continuance

is necessary for the defense team to have "a reasonable opportunity either to use the evidence in the trial or to use the information to obtain evidence for use in the trial." *Rodriguez*, 496 F.3d at 226. If denying a continuance means the defense would lack an opportunity to use the belatedly disclosed information "with some degree of calculation and forethought," the district court necessarily abuses its discretion, requiring reversal. *Leka*, 257 F.3d at 103.

CONCLUSION

In sum, amici curiae respectfully submit that the following considerations are relevant to deciding Michael Lee's appeal: (1) the State's good- or bad-faith compliance with Nevada law; (2) the application of the Fourteenth Amendment in the late-disclosure context; and (3) the district court's duty to grant a continuance when appropriate to mitigate prejudice.

Dated July 18, 2024.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

1. I hereby certify that this brief complies with the formatting requirements of NRAP 32(a)(4), the typeface requirements of NRAP 32(a)(5) and the type style requirements of NRAP 32(a)(6) because this brief has been prepared in a proportionally spaced typeface, Times New Roman, 14 point font.

2. I further certify that this brief complies with the page- or type-volume limitations of NRAP 32(a)(7) because, excluding the parts of the brief exempted by NRAP 32(a)(7)(C), it is proportionately spaced, has a typeface of 14 points or more, and contains 2,460 words.

3. I hereby certify that I have read this appellate brief, and to the best of my knowledge, information, and belief, it is not frivolous or interposed for any improper purpose. I further certify that this brief complies with all applicable Nevada Rules of Appellate Procedure, in particular NRAP 28(e)(1), which requires every assertion in the brief regarding matters in the record to be supported by a reference to the page and volume number, if any, of the transcript or appendix where the matter relied on is to be found. I understand that I may be subject to sanctions in the event that the accompanying brief is not in conformity with the requirements of the Nevada Rules of Appellate Procedure.

Dated July 18, 2024.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on July 18, 2024, I electronically filed the foregoing with the Clerk of the Nevada Supreme Court by using the appellate electronic filing system. Participants in the case who are registered users in the appellate electronic filing system will be served by the system and include:

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